

6. **S-CV-0051246 Willms, John T v. Juchau, Lunele**

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to Strike

Cross-complainants move to strike cross-defendants' answer to the first amended cross-complaint ("FAXC") or, in the alternative, to strike cross-defendants' second, third, fourth, fifth, and sixth affirmative defenses therein. (Code Civ. Proc., § 436, subd. (a).) Cross-defendants oppose the motion.

Preliminary Matters

A party moving to strike a pleading must meet and confer in good faith prior to filing a motion to strike. (Code Civ. Proc., § 435.5; Local Rule 20.1.) Cross-complainants submit no evidence of any effort to comply with this requirement. While generally the trial court would continue hearing on the motion for cross-complainants to attempt to resolve this issue out of court, in light of the impending trial date, the court elects to reach the merits of the motion.

Cross-complainants' request for judicial notice is granted.

Cross-complainants' objections are overruled in their entirety.

Ruling on the Motion

The motion is denied. Cross-complainants filed their cross-complaint on September 17, 2024, which cross-defendants answered on December 4, 2024. Cross-complainants filed their FAXC on March 13, 2026. While no answer to the FAXC was timely filed, cross-complainants did not seek entry of default or demand cross-defendants answer. Rather, cross-complainants elected to file a motion for summary judgment and then cross-defendants filed their answer to the FAXC on July 31, 2026. Now cross-complainants argue cross-defendants waited until the last possible minute to answer and did so in bad faith. Cross-complainants argue that they will be prejudiced in combatting the newly raised defenses because the discovery cutoff and the deadline for expert disclosure have already passed. Cross-complainants go so far as to argue, "Allowing the Willms to proceed with their answer to the FAXC makes a mockery of the judicial process." (XCs' motion, p. 6:18–19.) What cross-complainants do not provide, however, is any citation to legal authority that would support a finding that the answer to the FAXC is "irrelevant, false, or improper." The motion is accordingly denied.

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Cross-complainants move for summary judgment or, in the alternative, summary adjudication of their claims for declaratory relief and injunctive relief in their first amended cross-complaint (“FAXC”). Cross-defendants oppose the motion.

Evidentiary Issues

Cross-complainants’ request for judicial notice submitted with their moving papers is granted.

Cross-defendants’ request for judicial notice is granted as to Exhibit A and denied as to Exhibit B.

Cross-defendants’ objections to the Juchau declaration and Exhibit 1 thereto are overruled.

Cross-defendants’ request for judicial notice submitted with their reply is granted.

Cross-complainant’s objections to portions of the Willms declaration are overruled, their objections to portions of the Thomas declaration are overruled, their objections to cross-defendants’ request for judicial notice of Exhibit A is overruled, and their objection to cross-defendants’ request for judicial notice of Exhibit B is denied as moot in light of the court’s above ruling denying cross-defendants’ request for judicial notice as to Exhibit B.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of material fact. (Code Civ. Proc., § 437c, subd. (c).) The party seeking summary judgment bears the burden of showing there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving party has the burden of showing, by affidavit, facts establishing every element necessary to sustain a judgment in favor of the party. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Once a cross-complainant proves its prima facie case, the burden of proof shifts to the cross-defendant to prove a triable issue of one or more material facts exists. (Code Civ. Proc., § 437c, subd. (p)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Cross-complainants present evidence that their home is located at 1255 Robbers Ravine Road in Colfax, California, and cross-defendants live immediately to the east of the cross-complainants at 26885 Rockrose Lane in Colfax, California. (SSUMF No. 1.)

Cross-complainants also own the parcel immediately to the south of and adjacent to cross-complainants' Robbers Ravine parcel and cross-defendants' Rockrose parcel. (SSUMF No. 2.) There is a pond that forms from rain and runoff in a ravine on cross-complainants' property that generally fills during the wet season and empties during the dry season. (SSUMF No. 5.) During most of the year, the pond is exclusively on the cross-complainants' property, but when the pond is full or near full capacity, the water extends eastward away from the dam on the western side and covers a portion of cross-defendants' property. (SSUMF Nos. 5, 6.) Over the years, the parties have disagreed about who is entitled to use the pond as cross-defendants contend when the pond touches their real property, they are entitled to use the entirety of the pond while the cross-complainants disagree. (SSUMF Nos. 4, 7–9.)

Cross-complainants contend entitlement to judgment on both causes of action contending that the undisputed facts show the respective parties each own a portion of the real property that is underneath the pond and persuasive authority supports that cross-complainants may exclude the cross-defendants from access to and use of the portion of the pond that is above cross-defendants' real property. Cross-complainants acknowledge there is no California authority directly on point but ask the court to adopt what other jurisdictions have referred to as the majority view that the owner of real property underneath a body of water maintains the exclusive right of use of the water on that real property and may exclude others. (See, e.g., *Baker v. Normanoch Assn.* (1957) 25 N.J. 407, 418.)

A claim for declaratory relief requires an actual controversy relating to the legal rights and duties of the respective parties to a written instrument. (Code Civ. Proc., § 1060.) Cross-complainants do not refer to or present as evidence any written instrument. Cross-complainants' only evidence showing an actual controversy is a reference to "several disputes" "[o]ver the years" and referring to the cross-defendants' complaint and cross-complainants' FAXC. (SSUMF Nos. 3, 4, 9.) While it appears cross-complainants did not submit any evidence as to two elements of their first cause of action, the court also observes that cross-defendants concede there is "an actual controversy [that] exists between the parties concerning their respective rights to use the pond." (RSSUMF No. 7.) Nonetheless, as cross-defendants did not submit any evidence of a "written instrument," they have not shown entitlement to judgment.

As to cross-complainants' claim for injunctive relief, cross-complainants rely on the exact same evidence they presented for their declaratory relief claim. Cross-complainants submit no evidence to support injunctive relief as the proper outcome over other legal remedies available including damages. It appears cross-complainants have not met their initial burden as to the injunctive relief claim.

Even if cross-complainants' evidence is sufficient for the court to find they met their initial burden, cross-defendants nonetheless meet their burden so as to defeat the motion. Cross-defendants submit evidence in the form of a responsive separate statement ("RSSUMF") and a separate statement of additional material facts ("SSAMF") that from June 2012 to June 2022, they used the entire surface of the pond openly, regularly, and

without restriction. (RSSUMF No. 4; SSAMF 16.) Cross-defendants used the pond because they understood they had a right to do so; they never asked permission to use the pond nor did cross-complainants ever grant permission. (SSAMF No. 17.) No fence, rope, marker, or other barrier divided the pond until a rope and buoy line first appeared in 2022 and no dispute concerning the property line or this use arose until after cross-complainants purchased their second parcel to the south and cross-defendants listed their property for sale. (RSSUMF No. 4; SSAMF No. 18.) The pond forms from a stream that rises in the northeast of cross-complainants' property and flows through their property to the ravine where it collects behind the dam. (RSSUMF No. 5; SSAMF No. 10.) The property line is disputed because the cross-defendants retained licensed surveyor Clayton Guiraud who surveyed and staked the boundary in August 2020 and the survey ribbon was removed within approximately one week and cross-complainant Corey Juchau had indicated the surveyed line was not the property line. (RSSUMF No. 6; SSAMF No. 19.) The rope and buoy line does not follow the true property line. (RSSUMF No. 6, SSAMF No. 19.)

Based on their evidence, cross-defendants sufficiently raise triable issues of material fact as to the existence of a prescriptive easement and as to unclean hands. The evidence about the accumulation of the pond from a stream also supports denying this motion. As no party submits evidence as to whether the pond is navigable, it is unclear the applicability of Civil Code sections 670 and 830. Moreover, Civil Code section 830 provides that when a landowner owns water to the edge of "any other water" other than tide water or a navigable lake or stream, then "the owner takes to the middle of the lake or stream." As neither party submits any evidence as to what type of water the pond is and distance and exact measures are not included on cross-complainants' Exhibit 1, this is another reason the motion should not be granted.

Based on the foregoing, the motion for summary judgment is denied and the motion for summary adjudication is likewise denied.

7. S-CV-0053363 Dept. of Transp. v. Roth, Thomas A

Motion for Order for Possession of Parcels 38575-1, 2, 3, and 4

Plaintiff seeks a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof.

Defendants do not oppose possession 30 days after service of the order after the September 1, 2026, motion hearing or October 6, 2026, whichever is later, which is the statutory date it can be granted by the court per Code of Civil Procedure Section 1255.450(b). Defendants request that possession be granted on the condition that plaintiff fence off its takes and post no trespassing signs. Plaintiff accepts defendants' request and condition.

The motion for a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof is granted. The court finds notice was properly given to